

SENATE No.

The Commonwealth of Massachusetts

PRESENTED BY:

Bruce E. Tarr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to enhanced background checks for early education providers.

PETITION OF:

NAME:	DISTRICT/ADDRESS:
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>
<i>Kelly A. Dooner</i>	<i>Third Bristol and Plymouth</i>
<i>Peter J. Durant</i>	<i>Worcester and Hampshire</i>
<i>Ryan C. Fattman</i>	<i>Worcester and Hampden</i>
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>

SENATE No.

By Mr. Tarr, a petition (accompanied by bill) (subject to Joint Rule 12) of Bruce E. Tarr, Kelly A. Dooner, Peter J. Durant, Ryan C. Fattman and others for legislation to enhance background checks for early education providers. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to enhanced background checks for early education providers.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Not later than 120 days following the passage of this act, the department of early
2 education and care shall develop a plan to expand background checks for licensure, employment,
3 and presence in programs licensed, approved, or funded by the department for applicants who
4 have resided outside of the United States in the previous five years, to include, to the maximum
5 feasible extent, all available international criminal record information. Said plan shall consider
6 the utilization of mechanisms including, but not limited to, background checks through
7 international databases and requirements for documentation from relevant custodians of criminal
8 records in foreign jurisdictions, including but not limited to letters of good standing. In
9 developing such plan the department shall take into account the availability of information, any
10 necessary changes to law, rule, or regulation to allow access to, and the use of, information, the
11 costs and time involved in accessing information, and the most efficient and effective means to
12 ensure that international criminal record information is incorporated into the department's
13 licensure and approval processes.

14 Said plan shall be filed with the clerks of the House and Senate, the Joint Committees on
15 the Judiciary and the Joint Committee on Education not later than 30 days following its
16 development, provided that it shall be implemented not later than 30 days following such filing